

MASTER CREDIT FACILITY AGREEMENT
TERM LOAN FACILITY OF INR 24,50,00,000/-

KEY TERMS AND CONDITIONS

CLAUSE 2. FACILITY AMOUNT & DISBURSEMENT

The Lender agrees to grant to the Borrower a Rupee Term Loan facility not exceeding INR 24,50,00,000/- (Rupees Twenty-Four Crores Fifty Lakhs only) for financing infrastructural development and road projects.

CLAUSE 4. INTEREST AND REPAYMENT SCHEDULE

Interest shall accrue at 11.25% per annum floating (1-year MCLR + 2.50%), payable on monthly rest. The Principal shall be repayable in 24 equal quarterly instalments of INR 1,02,08,333/- commencing from 30th September 2020.

CLAUSE 9. EVENTS OF DEFAULT

Each of the following occurrences constitutes an Event of Default:

- (a) Payment Default: Failure by the Borrower to pay on the due date any sum payable under this Agreement;
- (b) Cross-Default: Any default occurring under any other financial contract with any lender;
- (c) Material Adverse Change: Any suspension or severe disruption of operations of the Borrower.

CLAUSE 12. REMEDIES & STATUTORY PROCEEDINGS

Upon occurrence of an Event of Default, the entire outstanding amount shall become immediately due and payable. The Lender shall be entitled to initiate proceedings under the Insolvency and Bankruptcy Code, 2016 before the Hon'ble National Company Law Tribunal, New Delhi / Mumbai Benches.

For THE J&K BANK LIMITED

[Sd/- Sanjeev Kumar, CGM]

For ESSEL INFRAPROJECTS LIMITED

[Sd/- Pooja Ramesh Singh, Director]